

		When there is a split in authority, the trial court may follow the decision it finds to be the most persuasive. (Auto Equity Sales, Inc. v. Superior Court (1962) 57 Cal.2d 450, 456 [when “appellate decisions are in conflict” a “court exercising inferior jurisdiction can and must make a choice between the conflicting decisions”].) Disagreeing with Felisilda, the Ochoa court held that “manufacturer vehicle warranties that accompany the sale of motor vehicles without regard to the terms of the sale contract between the purchaser and the dealer are independent of the sale contract.” (Id.) The court in Ochoa further explained: “California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.” (Id. at 1335.) “[O]ur Supreme Court [has] distinguished between, on the one hand, warranty obligations flowing from the seller to the buyer by contract, and, on the other hand, manufacturer warranties ‘that arise[] independently of a contract of sale between the parties.’” (Id. at 1336.) Thus, the Ochoa court held that “Plaintiff’s claims in no way rely on the sale contracts” and, consequently, “[e]quitable estoppel does not apply.” (Id. at 1336; see also gen. Kielar v. Superior Court (2023) 94 Cal.App.5th 614 and Montemayor v. Ford Motor Co. (2023) 92 Cal.App.5th 958 [both agreeing with Ochoa and disagreeing with Felisilda].) After reviewing the cases, the court agrees with the law stated in Ochoa, Kielar, and Montemayor. Plaintiffs’ claims here based on the manufacturer’s warranties, are not so intertwined with the contract obligations in the RISC, to justify invoking the equitable estoppel doctrine to compel a nonsignatory to arbitrate. Accordingly, the motion to compel arbitration is denied. Plaintiffs shall give notice.
111.	2022-1297372 Lehman v. U.D.R.	The Demurrer by Defendant DCO Pacific City LLC, erroneously sued as UDR – DCO Pacific City LLC, is sustained with leave to amend. The Complaint filed by Plaintiff Kent Lehman fails to state facts sufficient to constitute a claim for negligence and is uncertain. (Co

		Plaintiff must file and serve an amended pleading within 30 days of the notice of ruling. Defendant shall give notice of the ruling.
112.	2022-1269769 Mora v. City of Placentia	The Demurrer to the First Cause of Action for Premises Liability brought by Defendant the City of Placentia is SUSTAINED, with 15-days leave to amend. “Except as otherwise provided by statute...[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, §815, subd. (a) [emphasis added].) “In other words, direct tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714.” (Eastburn v. Regional Fire Protection Authority (2003) 31 Cal.4th 1175, 1183.) “Since the duty of a governmental agency can only be created by statute or ‘enactment,’ the statute or ‘enactment’ claimed to establish the duty must at the very least be identified.” (Searcy v. Hemet Unified School Dist. (1986) 177 Cal.App.3d 792, 802.) Here, the demurrer to the first cause of action for premises liability is sustained, as the claim fails to identify a statutory basis for public entity liability. At most, the Complaint references Placentia’s Municipal Code §2.08.100; however, the same is not a statutory duty, as contemplated by Government Code section 815. Defendant interprets the reference to Municipal Code §2.08.100 as an attempt to invoke Government Code section 815.6, which states: “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” (Gov. Code, §815.6.) To the extent Plaintiff intended to rely on the above provision, this reliance fails as: (1) Plaintiff did not plead reliance on Government Code section 815.6; and (2) Placentia Municipal Code §2.08.100 does not establish a mandatory duty.